



DECISION

Complaint No. : POS/321/HYD/2025

Name and address of the complainant : Mst. Shamim wd/o. Muhammad Naeem R/o. H No.1426, Shah Faisal Colony Katcha Qila Cantt, Hyderabad.

Name of the Agency Complained against : Senior Superintendent of Police, Hyderabad

Name & Designation of Investigating Officer : Syed Muhammad Sajjad Hyder, Regional Director, Regional Office, Hyderabad.

Vetted by : Muhammad Naseer Jamali, Advisor-N

Subject :

**COMPLAINT AGAINST POLICE STATION
MAKKI SHAH ALLEGING FAILURE TO TAKE
ACTION AGAINST CRIMINAL TRESPASS IN
THE HOUSE OF THE COMPLAINANT.**

COMPLAINT

Mst. Shamim filed a complaint dated 03.03.2025 wherein she alleged that the accused persons, named Attique Deswali and Muhammad Shafique (alias Papa) trespassed into her house and attempted rape. She submitted an application at Makki Shah police station for registration of FIR but no action has been taken by the police. Aggrieved by that, she solicited intervention of this Institution.

PROCEEDINGS

- 2.. The complaint was admitted for investigation under Section 10(3) of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (amended upto date) subject to submission of mandatory documents and by condoning the delay.
3. This office issued a notice vide letter dated 08.05.2025 to the Senior Superintendent of Police, district Hyderabad for report. In response, the Incharge Complaint Cell, SSP office Hyderabad informed vide letter dated 26.05.2025 that an enquiry was conducted through SHO, police station Makki Shah. The enquiry report revealed that the matter pertains to a civil dispute between the parties as the complainant was previously a tenant of the accused person, named Attique Deswali. The complainant had approached the court of Additional Session Judge Hyderabad for lodging FIR and the same was disposed of as dismissed vide order 26.04.2025 as no cognizable offence had occurred. However, the court issued directions for providing legal protection to the complainant.
4. A copy of the agency's report was sent to the complainant for rejoinder vide letter dated 26.06.2025, followed by a reminder but she did not respond.

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DECISION

5. In view of the above and in exercise of powers vested in me under Section 11 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (as amended up to date) the complaint is disposed of on account of non-prosecution.

Given under my hand and seal of the office



Sd /-
(MUHAMMAD SOHAIL RAJPUT)
Sitara-e-Imtiaz, PAS
Ombudsman Sindh

Karachi, dated 25th May, 2026

